

PCT

Article 3:

TITLE: The International Application

JURISDICTION: International

CATEGORY: Patents

SOURCE CITATION: Patent Cooperation Treaty (PCT), 1970, Article 3

PLAIN ENGLISH SUMMARY:

Article 3 defines what an international patent application is under the PCT. It must contain a request, description, claims, drawings where required, and an abstract, and must meet prescribed language, format, unity of invention, and fee requirements. For an Ayurvedic invention, this provides the basic structure and filing requirements for seeking patent protection through the PCT system.

THE EXACT LEGAL TEXT:

(1) Applications for the protection of inventions in any of the Contracting States may be filed as international applications under this Treaty.

(2) An international application shall contain, as specified in this Treaty and the Regulations, a request, a description, one or more claims, one or more drawings (where required), and an abstract.

(3) The abstract merely serves the purpose of technical information and cannot be taken into account for any other purpose, particularly not for the purpose of interpreting the scope of the protection sought.

(4) The international application shall:

- (i) be in a prescribed language;
- (ii) comply with the prescribed physical requirements;
- (iii) comply with the prescribed requirement of unity of invention;
- (iv) be subject to the payment of the prescribed fees.

KEYWORDS/TRIGGERS:

International Patent Application, PCT Filing, PCT Application Requirements, Patent Description, Patent Claims, Unity of Invention, PCT Fees, Patent Drawings

Article 4:

TITLE: The Request

JURISDICTION: International

CATEGORY: Patents

SOURCE CITATION: Patent Cooperation Treaty (PCT), 1970, Article 4

PLAIN ENGLISH SUMMARY:

Article 4 specifies the information that must be included in the request for an international patent application. It covers the designated countries, applicant and agent details, invention title, and inventor information where required. It also requires the prescribed designation fees to be paid within the specified time limit.

THE EXACT LEGAL TEXT:

(1) The request shall contain:

(i) a petition to the effect that the international application be processed according to this Treaty;

(ii) the designation of the Contracting State or States in which protection for the invention is desired on the basis of the international application ("designated States"); if for any designated State a regional patent is available and the applicant wishes to obtain a regional patent rather than a national patent, the request shall so indicate; if, under a treaty concerning a regional patent, the applicant cannot limit his application to certain of the States party to that treaty, designation of one of those States and the indication of the wish to obtain the regional patent shall be treated as designation of all the States party to that treaty; if, under the national law of the designated State, the designation of that State has the effect of an application for a regional patent, the designation of the said State shall be treated as an indication of the wish to obtain the regional patent;

(iii) the name of and other prescribed data concerning the applicant and the agent (if any);

(iv) the title of the invention;

(v) the name of and other prescribed data concerning the inventor where the national law of at least one of the designated States requires that these indications be furnished at the time of

filing a national application. Otherwise, the said indications may be furnished either in the request or in separate notices addressed to each designated Office whose national law requires the furnishing of the said indications but allows that they be furnished at a time later than that of the filing of a national application.

(2) Every designation shall be subject to the payment of the prescribed fee within the prescribed time limit.

(3) Unless the applicant asks for any of the other kinds of protection referred to in Article 43, designation shall mean that the desired protection consists of the grant of a patent by or for the designated State. For the purposes of this paragraph, Article 2(ii) shall not apply.

(4) Failure to indicate in the request the name and other prescribed data concerning the inventor shall have no consequence in any designated State whose national law requires the furnishing of the said indications but allows that they be furnished at a time later than that of the filing of a national application. Failure to furnish the said indications in a separate notice shall have no consequence in any designated State whose national law does not require the furnishing of the said indications.

KEYWORDS/TRIGGERS:

PCT Request, Designated States, International Patent Filing, Applicant Details, Agent Details, Inventor Information, Designation Fee, Regional Patent

Article 5:

TITLE: The Description

JURISDICTION: International

CATEGORY: Patents

SOURCE CITATION: Patent Cooperation Treaty (PCT), 1970, Article 5

PLAIN ENGLISH SUMMARY:

Article 5 requires the patent description to explain the invention clearly and completely enough that a person skilled in the relevant field can understand and carry it out. For an Ayurvedic invention, the description should provide sufficient technical details about the invention, its preparation or implementation, and how it works.

THE EXACT LEGAL TEXT:

The description shall disclose the invention in a manner sufficiently clear and complete for the invention to be carried out by a person skilled in the art.

KEYWORDS/TRIGGERS:

Patent Description, PCT Article 5, Sufficient Disclosure, Clear and Complete Description, Person Skilled in the Art, Invention Disclosure, Ayurvedic Invention, Patent Specification

Article 6:

TITLE: The Claims

JURISDICTION: International

CATEGORY: Patents

SOURCE CITATION: Patent Cooperation Treaty (PCT), 1970, Article 6

PLAIN ENGLISH SUMMARY:

Article 6 requires the patent claims to clearly define what the applicant wants to protect. The claims must be clear, concise, and fully supported by the description. For an Ayurvedic invention, the claims should clearly identify the specific formulation, process, composition, or other inventive feature for which patent protection is sought.

THE EXACT LEGAL TEXT:

The claim or claims shall define the matter for which protection is sought. Claims shall be clear and concise. They shall be fully supported by the description.

KEYWORDS/TRIGGERS:

Patent Claims, PCT Article 6, Scope of Protection, Clear and Concise Claims, Supported Claims, Ayurvedic Patent Claims, Patent Claim Drafting, Invention Protection

Article 8:

TITLE: Claiming Priority

JURISDICTION: International

CATEGORY: Patents

SOURCE CITATION: Patent Cooperation Treaty (PCT), 1970, Article 8

PLAIN ENGLISH SUMMARY:

Article 8 allows an international patent application to claim priority based on one or more earlier applications filed in a country that is a member of the Paris Convention. The conditions and legal effect of the priority claim generally follow the Paris Convention, while certain priority claims are governed by the national law of the designated country. For an Ayurvedic startup, this can help preserve the priority date of an earlier patent application when subsequently filing internationally through the PCT.

THE EXACT LEGAL TEXT:

(1) The international application may contain a declaration, as prescribed in the Regulations, claiming the priority of one or more earlier applications filed in or for any country party to the Paris Convention for the Protection of Industrial Property.

(2)(a) Subject to the provisions of subparagraph (b), the conditions for, and the effect of, any priority claim declared under paragraph (1) shall be as provided in Article 4 of the Stockholm Act of the Paris Convention for the Protection of Industrial Property.

(b) The international application for which the priority of one or more earlier applications filed in or for a Contracting State is claimed may contain the designation of that State. Where, in the international application, the priority of one or more national applications filed in or for a designated State is claimed, or where the priority of an international application having designated only one State is claimed, the conditions for, and the effect of, the priority claim in that State shall be governed by the national law of that State.

KEYWORDS/TRIGGERS:

PCT Priority Claim, Claiming Priority, Paris Convention, Earlier Patent Application, Priority Date, International Patent Filing, Designated State, National Patent Law

Article 11:

TITLE: Filing Date and Effects of the International Application

JURISDICTION: International

CATEGORY: Patents

SOURCE CITATION: Patent Cooperation Treaty (PCT), 1970, Article 11

PLAIN ENGLISH SUMMARY:

Article 11 explains when an international patent application receives its international filing date and the basic requirements that must be satisfied. If the requirements are met, the international

application has the effect of a regular national application in each designated State from the international filing date. For an Ayurvedic startup, this filing date is important because it establishes the application's effective filing date in the designated countries.

THE EXACT LEGAL TEXT:

(1) The receiving Office shall accord as the international filing date the date of receipt of the international application, provided that that Office has found that, at the time of receipt:

(i) the applicant does not obviously lack, for reasons of residence or nationality, the right to file an international application with the receiving Office,

(ii) the international application is in the prescribed language,

(iii) the international application contains at least the following elements:

(a) an indication that it is intended as an international application,

(b) the designation of at least one Contracting State,

(c) the name of the applicant, as prescribed,

(d) a part which on the face of it appears to be a description,

(e) a part which on the face of it appears to be a claim or claims.

(2)(a) If the receiving Office finds that the international application did not, at the time of receipt, fulfill the requirements listed in paragraph (1), it shall, as provided in the Regulations, invite the applicant to file the required correction.

(b) If the applicant complies with the invitation, as provided in the Regulations, the receiving Office shall accord as the international filing date the date of receipt of the required correction.

(3) Subject to Article 64(4), any international application fulfilling the requirements listed in items (i) to (iii) of paragraph (1) and accorded an international filing date shall have the effect of a regular national application in each designated State as of the international filing date, which date shall be considered to be the actual filing date in each designated State.

(4) Any international application fulfilling the requirements listed in items (i) to (iii) of paragraph (1) shall be equivalent to a regular national filing within the meaning of the Paris Convention for the Protection of Industrial Property.

KEYWORDS/TRIGGERS:

International Filing Date, PCT Article 11, Receiving Office, PCT Filing Requirements, Designated States, National Application Effect, Paris Convention, Patent Filing Date

Article 15:

TITLE: International Search

JURISDICTION: International

CATEGORY: Patents

SOURCE CITATION: Patent Cooperation Treaty (PCT), 1970, Article 15

PLAIN ENGLISH SUMMARY:

Article 15 requires every international patent application to undergo an international search to identify relevant prior art. The search is mainly based on the claims, while also considering the description and drawings. For an Ayurvedic startup, this search helps identify existing patents and other prior art that may affect the novelty and patentability of the invention.

THE EXACT LEGAL TEXT:

- (1) Each international application shall be the subject of international search.
- (2) The objective of the international search is to discover relevant prior art.
- (3) International search shall be made on the basis of the claims, with due regard to the description and the drawings (if any).
- (4) The International Searching Authority referred to in Article 16 shall endeavor to discover as much of the relevant prior art as its facilities permit, and shall, in any case, consult the documentation specified in the Regulations.
- (5)(a) If the national law of the Contracting State so permits, the applicant who files a national application with the national Office of or acting for such State may, subject to the conditions provided for in such law, request that a search similar to an international search ("international-type search") be carried out on such application.
- (b) If the national law of the Contracting State so permits, the national Office of or acting for such State may subject any national application filed with it to an international-type search.
- (c) The international-type search shall be carried out by the International Searching Authority referred to in Article 16 which would be competent for an international search if the national application were an international application and were filed with the Office referred to in subparagraphs (a) and (b). If the national application is in a language which the International

Searching Authority considers it is not equipped to handle, the international-type search shall be carried out on a translation prepared by the applicant in a language prescribed for international applications and which the International Searching Authority has undertaken to accept for international applications. The national application and the translation, when required, shall be presented in the form prescribed for international applications.

KEYWORDS/TRIGGERS:

International Search, PCT Article 15, Prior Art Search, International Patent Search, International Searching Authority, Patent Novelty, Patentability Search, International-Type Search

Article 17:

TITLE:

Procedure Before the International Searching Authority

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 17

PLAIN ENGLISH SUMMARY:

Article 17 explains how the International Searching Authority (ISA) conducts the international patent search. If the application cannot be meaningfully searched, or certain subject matter is outside the required search scope, the ISA may state that no search report will be prepared for that part. If the application lacks unity of invention, the applicant may be asked to pay additional search fees for other inventions.

THE EXACT LEGAL TEXT:

(1) Procedure before the International Searching Authority shall be governed by the provisions of this Treaty, the Regulations, and the agreement which the International Bureau shall conclude, subject to this Treaty and the Regulations, with the said Authority.

(2)(a) If the International Searching Authority considers

(i) that the international application relates to a subject matter which the International Searching Authority is not required, under the Regulations, to search, and in the particular case decides not to search, or

(ii) that the description, the claims, or the drawings, fail to comply with the prescribed requirements to such an extent that a meaningful search could not be carried out,

the said Authority shall so declare and shall notify the applicant and the International Bureau that no international search report will be established.

(b) If any of the situations referred to in subparagraph (a) is found to exist in connection with certain claims only, the international search report shall so indicate in respect of such claims, whereas, for the other claims, the said report shall be established as provided in Article 18.

(3)(a) If the International Searching Authority considers that the international application does not comply with the requirement of unity of invention as set forth in the Regulations, it shall invite the applicant to pay additional fees. The International Searching Authority shall establish the international search report on those parts of the international application which relate to the invention first mentioned in the claims ("main invention") and, provided the required additional fees have been paid within the prescribed time limit, on those parts of the international application which relate to inventions in respect of which the said fees were paid.

(b) The national law of any designated State may provide that, where the national Office of that State finds the invitation, referred to in subparagraph (a), of the International Searching Authority justified and where the applicant has not paid all additional fees, those parts of the international application which consequently have not been searched shall, as far as effects in that State are concerned, be considered withdrawn unless a special fee is paid by the applicant to the national Office of that State.

KEYWORDS/TRIGGERS:

International Searching Authority, PCT Article 17, International Search Report, Meaningful Patent Search, Unity of Invention, Additional Search Fees, Patent Search Procedure, Unsearched Claims

Article 18:

TITLE:

The International Search Report

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 18

PLAIN ENGLISH SUMMARY:

Article 18 explains how the International Search Report (ISR) is prepared and communicated. The report must be prepared within the prescribed time and format, and once completed, it is sent to both the applicant and the International Bureau. If required, the report or a declaration under Article 17(2)(a) must also be translated according to the PCT Regulations.

THE EXACT LEGAL TEXT:

(1) The international search report shall be established within the prescribed time limit and in the prescribed form.

(2) The international search report shall, as soon as it has been established, be transmitted by the International Searching Authority to the applicant and the International Bureau.

(3) The international search report or the declaration referred to in Article 17(2)(a) shall be translated as provided in the Regulations. The translations shall be prepared by or under the responsibility of the International Bureau.

KEYWORDS/TRIGGERS:

International Search Report, PCT Article 18, International Searching Authority, Patent Search Report, International Bureau, PCT Translation, Search Report Transmission, Patent Prior Art

Article 19:

TITLE:

Amendment of the Claims Before the International Bureau

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 19

PLAIN ENGLISH SUMMARY:

Article 19 allows the applicant to amend the claims of an international patent application once after receiving the international search report. The amendments must be submitted to the International Bureau within the prescribed time and must not add new subject matter beyond what was disclosed in the original application, subject to certain national-law exceptions.

THE EXACT LEGAL TEXT:

(1) The applicant shall, after having received the international search report, be entitled to one opportunity to amend the claims of the international application by filing amendments with the International Bureau within the prescribed time limit. He may, at the same time, file a brief statement, as provided in the Regulations, explaining the amendments and indicating any impact that such amendments might have on the description and the drawings.

(2) The amendments shall not go beyond the disclosure in the international application as filed.

(3) If the national law of any designated State permits amendments to go beyond the said disclosure, failure to comply with paragraph (2) shall have no consequence in that State.

KEYWORDS/TRIGGERS:

PCT Article 19, Amendment of Claims, International Bureau, International Search Report, Patent Claim Amendment, Prescribed Time Limit, New Matter, Patent Application Disclosure

Article 21:

TITLE:

International Publication

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 21

PLAIN ENGLISH SUMMARY:

Article 21 explains how and when an international patent application is published by the International Bureau. Normally, publication takes place promptly after 18 months from the priority date, although the applicant can request earlier publication. The international search report or relevant declaration is also published, subject to the PCT Regulations and certain exceptions.

THE EXACT LEGAL TEXT:

(1) The International Bureau shall publish international applications.

(2)(a) Subject to the exceptions provided for in subparagraph (b) and in Article 64(3), the international publication of the international application shall be effected promptly after the expiration of 18 months from the priority date of that application.

(b) The applicant may ask the International Bureau to publish his international application any time before the expiration of the time limit referred to in subparagraph (a). The International Bureau shall proceed accordingly, as provided in the Regulations.

(3) The international search report or the declaration referred to in Article 17(2)(a) shall be published as prescribed in the Regulations.

(4) The language and form of the international publication and other details are governed by the Regulations.

(5) There shall be no international publication if the international application is withdrawn or is considered withdrawn before the technical preparations for publication have been completed.

(6) If the international application contains expressions or drawings which, in the opinion of the International Bureau, are contrary to morality or public order, or if, in its opinion, the international application contains disparaging statements as defined in the Regulations, it may omit such expressions, drawings, and statements, from its publications, indicating the place and number of words or drawings omitted, and furnishing, upon request, individual copies of the passages omitted.

KEYWORDS/TRIGGERS:

PCT Article 21, International Publication, 18-Month Publication, International Bureau, Patent Application Publication, Early Publication, International Search Report, PCT Publication

Article 22:

TITLE:

Copy, Translation, and Fee to Designated Offices

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 22

PLAIN ENGLISH SUMMARY:

Article 22 explains what an applicant must provide to each designated national Office to continue the patent process. The applicant generally has to submit a copy of the international application, provide the required translation, pay any national fee, and provide inventor information where required, within the prescribed time limit. National law may allow a longer period for completing these requirements.

THE EXACT LEGAL TEXT:

(1) The applicant shall furnish a copy of the international application (unless the communication provided for in Article 20 has already taken place) and a translation thereof (as prescribed), and pay the national fee (if any), to each designated Office not later than at the expiration of 30 months from the priority date. Where the national law of the designated State requires the indication of the name of and other prescribed data concerning the inventor but allows that these indications be furnished at a time later than that of the filing of a national application, the applicant shall, unless they were contained in the request, furnish the said indications to the national Office of or acting for the State not later than at the expiration of 30 months from the priority date.

(2) Where the International Searching Authority makes a declaration, under Article 17(2)(a), that no international search report will be established, the time limit for performing the acts referred to in paragraph (1) of this Article shall be the same as that provided for in paragraph (1).

(3) Any national law may, for performing the acts referred to in paragraphs (1) or (2), fix time limits which expire later than the time limit provided for in those paragraphs.

KEYWORDS/TRIGGERS:

PCT Article 22, Designated Offices, National Phase Entry, Patent Translation, National Fee, 30-Month Deadline, Inventor Information, PCT National Phase

Article 27:

TITLE:

National Requirements

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 27

PLAIN ENGLISH SUMMARY:

Article 27 explains how national patent laws interact with the PCT application. A designated State generally cannot impose different or additional requirements regarding the form or contents of the international application, but national law can still determine important substantive issues such as patentability, prior art, evidence, representation, and national-security restrictions. Therefore, an Ayurvedic patent applicant must follow both the PCT procedure and the applicable national patentability requirements.

THE EXACT LEGAL TEXT:

(1) No national law shall require compliance with requirements relating to the form or contents of the international application different from or additional to those which are provided for in this Treaty and the Regulations.

(2) The provisions of paragraph (1) neither affect the application of the provisions of Article 7(2) nor preclude any national law from requiring, once the processing of the international application has started in the designated Office, the furnishing:

(i) when the applicant is a legal entity, of the name of an officer entitled to represent such legal entity,

(ii) of documents not part of the international application but which constitute proof of allegations or statements made in that application, including the confirmation of the international application

by the signature of the applicant when that application, as filed, was signed by his representative or agent.

(3) Where the applicant, for the purposes of any designated State, is not qualified according to the national law of that State to file a national application because he is not the inventor, the international application may be rejected by the designated Office.

(4) Where the national law provides, in respect of the form or contents of national applications, for requirements which, from the viewpoint of applicants, are more favorable than the requirements provided for by this Treaty and the Regulations in respect of international applications, the national Office, the courts and any other competent organs of or acting for the designated State may apply the former requirements, instead of the latter requirements, to international applications, except where the applicant insists that the requirements provided for by this Treaty and the Regulations be applied to his international application.

(5) Nothing in this Treaty and the Regulations is intended to be construed as prescribing anything that would limit the freedom of each Contracting State to prescribe such substantive conditions of patentability as it desires. In particular, any provision in this Treaty and the Regulations concerning the definition of prior art is exclusively for the purposes of the international procedure and, consequently, any Contracting State is free to apply, when determining the patentability of an invention claimed in an international application, the criteria of its national law in respect of prior art and other conditions of patentability not constituting requirements as to the form and contents of applications.

(6) The national law may require that the applicant furnish evidence in respect of any substantive condition of patentability prescribed by such law.

(7) Any receiving Office or, once the processing of the international application has started in the designated Office, that Office may apply the national law as far as it relates to any requirement that the applicant be represented by an agent having the right to represent applicants before the said Office and/or that the applicant have an address in the designated State for the purpose of receiving notifications.

(8) Nothing in this Treaty and the Regulations is intended to be construed as limiting the freedom of any Contracting State to apply measures deemed necessary for the preservation of its national security or to limit, for the protection of the general economic interests of that State, the right of its own residents or nationals to file international applications.

KEYWORDS/TRIGGERS:

PCT Article 27, National Requirements, National Patent Law, Substantive Patentability, Prior Art, Designated State, Patent Applicant Representation, National Security

Article 28:

TITLE:

Amendment of the Claims, the Description, and the Drawings, Before Designated Offices

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 28

PLAIN ENGLISH SUMMARY:

Article 28 allows the applicant to amend the claims, description, and drawings of the international application before each designated national Office. The amendments must normally remain within the disclosure of the original application and must follow the applicable national law. If a translation is required, the amendments must be made in the language of that translation.

THE EXACT LEGAL TEXT:

- (1) The applicant shall be given the opportunity to amend the claims, the description, and the drawings, before each designated Office within the prescribed time limit. No designated Office shall grant a patent, or refuse the grant of a patent, before such time limit has expired except with the express consent of the applicant.
- (2) The amendments shall not go beyond the disclosure in the international application as filed unless the national law of the designated State permits them to go beyond the said disclosure.
- (3) The amendments shall be in accordance with the national law of the designated State in all respects not provided for in this Treaty and the Regulations.
- (4) Where the designated Office requires a translation of the international application, the amendments shall be in the language of the translation.

KEYWORDS/TRIGGERS:

PCT Article 28, Amendment of Claims, Amendment of Description, Amendment of Drawings, Designated Office, Original Disclosure, National Patent Law, Patent Application Translation

Article 31:

TITLE:

Demand for International Preliminary Examination

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 31

PLAIN ENGLISH SUMMARY:

Article 31 allows an eligible applicant to request an International Preliminary Examination of their PCT application. The applicant must submit a separate demand, pay the prescribed fees, and identify the Contracting States where they intend to use the examination results, known as “elected States.” This examination provides an additional international assessment before the application proceeds through national phases.

THE EXACT LEGAL TEXT:

CHAPTER II — INTERNATIONAL PRELIMINARY EXAMINATION

Article 31 — Demand for International Preliminary Examination

(1) On the demand of the applicant, his international application shall be the subject of an international preliminary examination as provided in the following provisions and the Regulations.

(2)(a) Any applicant who is a resident or national, as defined in the Regulations, of a Contracting State bound by Chapter II, and whose international application has been filed with the receiving Office of or acting for such State, may make a demand for international preliminary examination.

(b) The Assembly may decide to allow persons entitled to file international applications to make a demand for international preliminary examination even if they are residents or nationals of a State not party to this Treaty or not bound by Chapter II.

(3) The demand for international preliminary examination shall be made separately from the international application. The demand shall contain the prescribed particulars and shall be in the prescribed language and form.

(4)(a) The demand shall indicate the Contracting State or States in which the applicant intends to use the results of the international preliminary examination ("elected States"). Additional Contracting States may be elected later. Election may relate only to Contracting States already designated under Article 4.

(b) Applicants referred to in paragraph (2)(a) may elect any Contracting State bound by Chapter II. Applicants referred to in paragraph (2)(b) may elect only such Contracting States bound by Chapter II as have declared that they are prepared to be elected by such applicants.

(5) The demand shall be subject to the payment of the prescribed fees within the prescribed time limit.

(6)(a) The demand shall be submitted to the competent International Preliminary Examining Authority referred to in Article 32.

(b) Any later election shall be submitted to the International Bureau.

(7) Each elected Office shall be notified of its election.

KEYWORDS/TRIGGERS:

PCT Article 31, International Preliminary Examination, Demand for Preliminary Examination, Elected States, Chapter II PCT, International Preliminary Examining Authority, PCT Examination Fees, Patentability Assessment

Article 33:

TITLE:

The International Preliminary Examination

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 33

PLAIN ENGLISH SUMMARY:

Article 33 explains the purpose and criteria of the International Preliminary Examination. It gives a preliminary and non-binding opinion on whether the claimed invention is novel, involves an inventive step (is non-obvious), and is industrially applicable. The examination considers the prior art and documents identified in the international search report, but individual countries may apply their own patentability requirements.

THE EXACT LEGAL TEXT:

- (1) The objective of the international preliminary examination is to formulate a preliminary and non-binding opinion on the questions whether the claimed invention appears to be novel, to involve an inventive step (to be non-obvious), and to be industrially applicable.
- (2) For the purposes of the international preliminary examination, a claimed invention shall be considered novel if it is not anticipated by the prior art as defined in the Regulations.
- (3) For the purposes of the international preliminary examination, a claimed invention shall be considered to involve an inventive step if, having regard to the prior art as defined in the Regulations, it is not, at the prescribed relevant date, obvious to a person skilled in the art.
- (4) For the purposes of the international preliminary examination, a claimed invention shall be considered industrially applicable if, according to its nature, it can be made or used (in the technological sense) in any kind of industry. "Industry" shall be understood in its broadest sense, as in the Paris Convention for the Protection of Industrial Property.
- (5) The criteria described above merely serve the purposes of international preliminary examination. Any Contracting State may apply additional or different criteria for the purpose of deciding whether, in that State, the claimed invention is patentable or not.
- (6) The international preliminary examination shall take into consideration all the documents cited in the international search report. It may take into consideration any additional documents considered to be relevant in the particular case.

KEYWORDS/TRIGGERS:

PCT Article 33, International Preliminary Examination, Novelty, Inventive Step, Non-Obviousness, Industrial Applicability, Prior Art, Patentability Assessment

Article 34:

TITLE:

Procedure Before the International Preliminary Examining Authority

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 34

PLAIN ENGLISH SUMMARY:

Article 34 explains the procedure followed by the International Preliminary Examining Authority (IPEA). The applicant can communicate with the Authority, amend the claims, description, and drawings, and respond to its written opinion. If there is a lack of unity of invention or the application is too unclear to form a meaningful opinion on novelty, inventive step, or industrial applicability, the Authority may require claim restriction, additional fees, or may limit the examination to the main invention.

THE EXACT LEGAL TEXT:

(1) Procedure before the International Preliminary Examining Authority shall be governed by the provisions of this Treaty, the Regulations, and the agreement which the International Bureau shall conclude, subject to this Treaty and the Regulations, with the said Authority.

(2)(a) The applicant shall have a right to communicate orally and in writing with the International Preliminary Examining Authority.

(b) The applicant shall have a right to amend the claims, the description, and the drawings, in the prescribed manner and within the prescribed time limit, before the international preliminary examination report is established. The amendment shall not go beyond the disclosure in the international application as filed.

(c) The applicant shall receive at least one written opinion from the International Preliminary Examining Authority unless such Authority considers that all of the following conditions are fulfilled:

(i) the invention satisfies the criteria set forth in Article 33(1),

(ii) the international application complies with the requirements of this Treaty and the Regulations in so far as checked by that Authority,

(iii) no observations are intended to be made under Article 35(2), last sentence.

(d) The applicant may respond to the written opinion.

(3)(a) If the International Preliminary Examining Authority considers that the international application does not comply with the requirement of unity of invention as set forth in the Regulations, it may invite the applicant, at his option, to restrict the claims so as to comply with the requirement or to pay additional fees.

(b) The national law of any elected State may provide that, where the applicant chooses to restrict the claims under subparagraph (a), those parts of the international application which, as a consequence of the restriction, are not to be the subject of international preliminary examination shall, as far as effects in that State are concerned, be considered withdrawn unless a special fee is paid by the applicant to the national Office of that State.

(c) If the applicant does not comply with the invitation referred to in subparagraph (a) within the prescribed time limit, the International Preliminary Examining Authority shall establish an international preliminary examination report on those parts of the international application which relate to what appears to be the main invention and shall indicate the relevant facts in the said report. The national law of any elected State may provide that, where its national Office finds the invitation of the International Preliminary Examining Authority justified, those parts of the international application which do not relate to the main invention shall, as far as effects in that State are concerned, be considered withdrawn unless a special fee is paid by the applicant to that Office.

(4)(a) If the International Preliminary Examining Authority considers

(i) that the international application relates to a subject matter on which the International Preliminary Examining Authority is not required, under the Regulations, to carry out an international preliminary examination, and in the particular case decides not to carry out such examination, or

(ii) that the description, the claims, or the drawings, are so unclear, or the claims are so inadequately supported by the description, that no meaningful opinion can be formed on the novelty, inventive step (non-obviousness), or industrial applicability, of the claimed invention,

the said Authority shall not go into the questions referred to in Article 33(1) and shall inform the applicant of this opinion and the reasons therefor.

(b) If any of the situations referred to in subparagraph (a) is found to exist in, or in connection with, certain claims only, the provisions of that subparagraph shall apply only to the said claims.

KEYWORDS/TRIGGERS:

PCT Article 34, International Preliminary Examining Authority, IPEA Procedure, Written Opinion, Amendment of Claims, Unity of Invention, Additional Fees, Patentability Examination

Article 35:**TITLE:**

The International Preliminary Examination Report

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 35

PLAIN ENGLISH SUMMARY:

Article 35 explains the International Preliminary Examination Report (IPRP), which provides a preliminary, non-binding assessment of the claimed invention. For each claim, the report indicates whether it appears to satisfy the requirements of novelty, inventive step (non-obviousness), and industrial applicability, supported by relevant documents and explanations. It does not decide whether the invention is patentable under the national law of any particular country.

THE EXACT LEGAL TEXT:

(1) The international preliminary examination report shall be established within the prescribed time limit and in the prescribed form.

(2) The international preliminary examination report shall not contain any statement on the question whether the claimed invention is or seems to be patentable or unpatentable according to any national law. It shall state, subject to the provisions of paragraph (3), in relation to each claim, whether the claim appears to satisfy the criteria of novelty, inventive step (non-obviousness), and industrial applicability, as defined for the purposes of the international preliminary examination in Article 33(1) to (4). The statement shall be accompanied by the citation of the documents believed to support the stated conclusion with such explanations as the circumstances of the case may require. The statement shall also be accompanied by such other observations as the Regulations provide for.

(3)(a) If, at the time of establishing the international preliminary examination report, the International Preliminary Examining Authority considers that any of the situations referred to in Article 34(4)(a) exists, that report shall state this opinion and the reasons therefor. It shall not contain any statement as provided in paragraph (2).

(b) If a situation under Article 34(4)(b) is found to exist, the international preliminary examination report shall, in relation to the claims in question, contain the statement as provided in subparagraph (a), whereas, in relation to the other claims, it shall contain the statement as provided in paragraph (2).

KEYWORDS/TRIGGERS:

PCT Article 35, International Preliminary Examination Report, IPRP, Novelty, Inventive Step, Industrial Applicability, Patentability Assessment, Prior Art Documents

Article 41:

TITLE:

Amendment of the Claims, the Description, and the Drawings, Before Elected Offices

JURISDICTION:

International

CATEGORY:

Patents

SOURCE CITATION:

Patent Cooperation Treaty (PCT), 1970, Article 41

PLAIN ENGLISH SUMMARY:

Article 41 gives the applicant an opportunity to amend the claims, description, and drawings before each elected national Office within the prescribed time limit. The amendments must generally remain within the original disclosure and must comply with the national law of the elected State. If a translation is required, the amendments must be made in the language of that translation.

THE EXACT LEGAL TEXT:

(1) The applicant shall be given the opportunity to amend the claims, the description, and the drawings, before each elected Office within the prescribed time limit. No elected Office shall grant a patent, or refuse the grant of a patent, before such time limit has expired, except with the express consent of the applicant.

(2) The amendments shall not go beyond the disclosure in the international application as filed, unless the national law of the elected State permits them to go beyond the said disclosure.

(3) The amendments shall be in accordance with the national law of the elected State in all respects not provided for in this Treaty and the Regulations.

(4) Where an elected Office requires a translation of the international application, the amendments shall be in the language of the translation.

KEYWORDS/TRIGGERS:

PCT Article 41, Amendment of Claims, Amendment of Description, Amendment of Drawings, Elected Office, Original Disclosure, National Patent Law, Patent Translation